

Offences & Penalties

The faster world-wide connectivity has developed numerous online crimes and these increased offences led to the need of laws for protection. In order to keep in stride with the changing generation, the Indian Parliament passed the Information Technology Act 2000 that has been conceptualized on the United Nations Commissions on International Trade Law (UNCITRAL) Model Law.

The law defines the offenses in a detailed manner along with the penalties for each category of offence.

Offences

Cyber offences are the illegitimate actions, which are carried out in a classy manner where either the computer is the tool or target or both.

Cyber-crime usually includes the following –

- Unauthorized access of the computers
- Data diddling
- Virus/worms attack
- Theft of computer system
- Hacking
- Denial of attacks
- Logic bombs
- Trojan attacks
- Internet time theft
- Web jacking
- Email bombing
- Salami attacks
- Physically damaging computer system.

The offences included in the I.T. Act 2000 are as follows –

- Tampering with the computer source documents.
- Hacking with computer system.
- Publishing of information which is obscene in electronic form.
- Power of Controller to give directions.
- Directions of Controller to a subscriber to extend facilities to decrypt information.
- Protected system.
- Penalty for misrepresentation.
- Penalty for breach of confidentiality and privacy.
- Penalty for publishing Digital Signature Certificate false in certain particulars.
- Publication for fraudulent purpose.
- Act to apply for offence or contravention committed outside India Confiscation.
- Penalties or confiscation not to interfere with other punishments.
- Power to investigate offences.

Example

Offences Under The It Act 2000

Section 65. Tampering with computer source documents

Whoever knowingly or intentionally conceals, destroys or alters or intentionally or knowingly causes another to conceal, destroy or alter any computer source code used for a computer, computer program, computer system or computer network, when the computer source code is required to be kept or maintained by law for the being time in force, shall be punishable with imprisonment up to three year, or with fine which may extend up to two lakh rupees, or with both.

Explanation – For the purpose of this section “computer source code” means the listing of programs, computer commands, design and layout and program analysis of computer resource in any form.

Object – The object of the section is to protect the “intellectual property” invested in the computer. It is an attempt to protect the computer source documents (codes) beyond what is available under the Copyright Law

Essential ingredients of the section

knowingly or intentionally concealing

knowingly or intentionally destroying

knowingly or intentionally altering

knowingly or intentionally causing others to conceal

knowingly or intentionally causing another to destroy

knowingly or intentionally causing another to alter.

This section extends towards the Copyright Act and helps the companies to protect their source code of their programs.

Penalties – Section 65 is tried by any magistrate.

This is cognizable and non-bailable offence.

Penalties – Imprisonment up to 3 years and / or

Fine – Two lakh rupees.

The following table shows the offence and penalties against all the mentioned sections of the I.T. Act –

Section	Offence	Punishment	Bailability and Cognizability
65	Tampering with Computer Source Code	Imprisonment up to 3 years or fine up to Rs 2 lakhs	Offence is Bailable, Cognizable and triable by Court of JMFC.
66	Computer Related Offences	Imprisonment up to 3 years or fine up to Rs 5 lakhs	Offence is Bailable, Cognizable and
66-A	Sending offensive messages through Communication service, etc...	Imprisonment up to 3 years and fine	Offence is Bailable, Cognizable and triable by Court of JMFC
66-B	Dishonestly receiving stolen computer resource or communication device	Imprisonment up to 3 years and/or fine up to Rs. 1 lakh	Offence is Bailable, Cognizable and triable by Court of JMFC
66-C	Identity Theft	Imprisonment of either description up to 3 years and/or fine up to Rs. 1 lakh	Offence is Bailable, Cognizable and triable by Court of JMFC
66-D	Cheating by Personation by using computer resource	Imprisonment of either description up to 3 years and /or fine up to Rs. 1 lakh	Offence is Bailable, Cognizable and triable by Court of JMFC
66-E	Violation of Privacy	Imprisonment up to 3 years and /or fine up to Rs. 2 lakh	Offence is Bailable, Cognizable and triable by Court of JMFC
66-F	Cyber Terrorism	Imprisonment extend to imprisonment for Life	Offence is Non-Bailable, Cognizable and triable by Court of Sessions
67	Publishing or transmitting obscene material in electronic form	On first Conviction, imprisonment up to 3 years and/or fine up to Rs. 5 lakh On Subsequent Conviction imprisonment up to 5 years and/or fine up to Rs. 10 lakh	Offence is Bailable, Cognizable and triable by Court of JMFC
67-A	Publishing or transmitting of material containing sexually explicit act, etc... in electronic form	On first Conviction imprisonment up to 5 years and/or fine up to Rs. 10 lakh On Subsequent Conviction imprisonment up to 7 years and/or fine up to Rs. 10 lakh	Offence is Non-Bailable, Cognizable and triable by Court of JMFC
67-B	Publishing or transmitting of material depicting	On first Conviction imprisonment of either	Offence is Non Bailable, Cognizable and

	children in sexually explicit act etc., in electronic form	description up to 5 years and/or fine up to Rs. 10 lakh On Subsequent Conviction imprisonment of either description up to 7 years and/or fine up to Rs. 10 lakh	triable by Court of JMFC
67-C	Intermediary intentionally or knowingly contravening the directions about Preservation and retention of information	Imprisonment up to 3 years and fine	Offence is Bailable, Cognizable.
68	Failure to comply with the directions given by Controller	Imprisonment up to 2 years and/or fine up to Rs. 1 lakh	Offence is Bailable, Non-Cognizable.
69	Failure to assist the agency referred to in sub section (3) in regard interception or monitoring or decryption of any information through any computer resource	Imprisonment up to 7 years and fine	Offence is Non-Bailable, Cognizable.
69-A	Failure of the intermediary to comply with the direction issued for blocking for public access of any information through any computer resource	Imprisonment up to 7 years and fine	Offence is Non-Bailable, Cognizable.
69-B	Intermediary who intentionally or knowingly contravenes the provisions of sub-section (2) in regard monitor and collect traffic data or information through any computer resource for cybersecurity	Imprisonment up to 3 years and fine	Offence is Bailable, Cognizable.
70	Any person who secures access or attempts to secure access to the protected system in contravention of provision of Sec. 70	Imprisonment of either description up to 10 years and fine	Offence is Non-Bailable, Cognizable.
70-B	Indian Computer Emergency Response Team to serve as national agency for incident response. Any service provider, intermediaries, data centres, etc., who fails to	Imprisonment up to 1 year and/or fine up to Rs. 1 lakh	Offence is Bailable, Non-Cognizable

	prove the information called for or comply with the direction issued by the ICERT.		
71	Misrepresentation to the Controller to the Certifying Authority	Imprisonment up to 2 years and/ or fine up to Rs. 1 lakh.	Offence is Bailable, Non-Cognizable.
72	Breach of Confidentiality and privacy	Imprisonment up to 2 years and/or fine up to Rs. 1 lakh.	Offence is Bailable, Non-Cognizable.
72-A	Disclosure of information in breach of lawful contract	Imprisonment up to 3 years and/or fine up to Rs. 5 lakh.	Offence is Cognizable, Bailable
73	Publishing electronic Signature Certificate false in certain particulars	Imprisonment up to 2 years and/or fine up to Rs. 1 lakh	Offence is Bailable, Non-Cognizable.
74	Publication for fraudulent purpose	Imprisonment up to 2 years and/or fine up to Rs. 1 lakh	Offence is Bailable, Non-Cognizable.

Compounding of Offences

As per Section 77-A of the I. T. Act, any Court of competent jurisdiction may compound offences, other than offences for which the punishment for life or imprisonment for a term exceeding three years has been provided under the Act.

No offence shall be compounded if –

- *The accused is, by reason of his previous conviction, is liable to either enhanced punishment or to the punishment of different kind; OR*
- *Offence affects the socio economic conditions of the country; OR*
- *Offence has been committed against a child below the age of 18 years; OR*
- *Offence has been committed against a woman.*

The person alleged of an offence under this Act may file an application for compounding in the Court. The offence will then be pending for trial and the provisions of Sections 265-B and 265-C of Cr. P.C. shall apply.